

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Charlie Hartford	Team: Squad #08	CCRB Case #: 202003799	☒ Force ☒ Discourt. ☒ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Saturday, 05/30/2020 9:28 PM, Saturday, 05/30/2020 10:06 PM, Monday, 08/10/2020 11:26 AM	Location of Incident: an unknown location in Brooklyn, 2803 Church Avenue in Brooklyn, and 100 Church Street in Manhattan	18 Mo. SOL 5/4/2022	Precinct: 67
Date/Time CV Reported Sun, 05/31/2020 6:34 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 05/31/2020 6:34 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. POM Daniel Chin	16062	948524	C R C
3. LT Michael Butler	00000	948725	CD OFF
4. POM Dylan Mccann	14257	960907	067 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Ranffy Angeles	24078	962926	HBK RT
2. SGT Herbert Bonilla	02444	932346	PSA 3
3. POM Connor Lichte	04856	951919	C R C
4. POM Henry Hernandez	20526	952843	C R C
5. POM Nickolas Quigley	06161	954252	C R C
6. POM Chad Phillips	26095	937287	C R C
7. POM Robert Edsall	15558	944529	C R C
8. POM William Cancel	24992	928999	C R C
9. POM Serhan Cambudak	05317	941491	C R C
10. POM Jeffery Wickham	31756	946575	C R C
11. POM Marcus Stewart	31664	942585	C R C
12. POM Bryan Rosales	00087	954296	C R C
13. SGT Michael Santoro	4522	949621	C R C
14. POM Michael Berndt	00513	961642	C R C
15. LT Daniel Delaney	00000	945653	C R C
16. SGT Daniel Haggerty	01122	947767	CD OFF

Officer(s)	Allegation	Investigator Recommendation
A . POM Dylan Mccann	Discourtesy: On May 30, 2020, at an unknown location in Brooklyn, Police Officer Dylan Mccann spoke discourteously to an individual.	A . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
B . POM Dylan Mccann	Off. Language: On May 30, 2020, at an unknown location in Brooklyn, Police Officer Dylan Mccann made remarks to an individual based upon the gender of an individual.	B . Unsubstantiated
C . POM Dylan Mccann	Abuse: On May 30, 2020, at an unknown location in Brooklyn, Police Officer Dylan Mccann refused to provide his shield number to § 87(2)(b)	C . Unsubstantiated
D . POM Daniel Chin	Abuse: On May 30, 2020, at 2803 Church Avenue in Brooklyn, Police Officer Daniel Chin stopped § 87(2)(b)	D . Substantiated
E . POM Daniel Chin	Abuse: On May 30, 2020, at 2803 Church Avenue in Brooklyn, Police Officer Daniel Chin detained § 87(2)(b)	E . Substantiated
F . POM Daniel Chin	Force: On May 30, 2020, at 2803 Church Avenue in Brooklyn, Police Officer Daniel Chin struck § 87(2)(b) with a baton.	F . Substantiated
G . POM Daniel Chin	Discourtesy: On May 30, 2020, at 2803 Church Avenue in Brooklyn, Police Officer Daniel Chin spoke discourteously to § 87(2)(b)	G . Substantiated
H . LT Michael Butler	Discourtesy: On May 30, 2020, at 2803 Church Avenue in Brooklyn, Lieutenant Michael Butler spoke discourteously to § 87(2)(b)	H . Substantiated
I . Officers	Discourtesy: On May 30, 2020, at 2803 Church Avenue in Brooklyn, officers spoke discourteously to § 87(2)(b)	I . Officer(s) Unidentified
J . POM Daniel Chin	Untruthful Stmt.: On August 10, 2020, at 100 Church Street in Manhattan, Police Officer Daniel Chin provided a false official statement to the CCRB.	J . Substantiated
§ 87(2)(g), § 87(4-b)		

Case Summary

On May 31, 2020, § 87(2)(b) filed this complaint with the CCRB online as a reporting non-witness on behalf of § 87(2)(b).

On May 30, 2020, at approximately 9:28 p.m., at an unknown location in Brooklyn, Police Officer Dylan McCann of the 67th Precinct allegedly spoke discourteously to an individual (**Allegation A: Discourtesy, unsubstantiated**). PO McCann allegedly made disparaging remarks regarding an individual's gender. (**Allegation B: Offensive Language, unsubstantiated**). PO McCann allegedly failed to provide his shield number to § 87(2)(b) (**Allegation C: Abuse of Authority, unsubstantiated**).

On May 30, 2020, at approximately 10:06 p.m., outside 2803 Church Avenue in Brooklyn, Police Officer Daniel Chin of Critical Response Command stopped and detained § 87(2)(b) (**Allegations D and E: Abuse of Authority, substantiated**). PO Chin used pushed § 87(2)(b) with his baton (**Allegation F: Force, substantiated**). PO Chin spoke discourteously to § 87(2)(b) (**Allegation G: Discourtesy, substantiated**). Lieutenant Michael Butler spoke discourteously to § 87(2)(b) (**Allegation H: Discourtesy, substantiated**). Officers spoke discourteously to § 87(2)(b) (**Allegation I: Discourtesy, officers unidentified**).

On August 10, 2020, at 11:26 a.m., at 100 Church Street in Manhattan, PO Chin provided a false official statement to the CCRB (**Allegation J: Untruthful Statement, substantiated**).

§ 87(2)(g), § 87(4-b)

This case contains body-worn camera footage (Board Reviews 10, 11 and 17), video footage accompanying the article § 87(2)(b) wrote for § 87(2)(b) concerning his arrest (Board Review 07), TARU footage (Board Review 18), as well as surveillance footage obtained from 2803 Church Avenue (Board Review 19). The latter two sources of video do not depict the incident at issue in this case.

Findings and Recommendations

Allegation (A) Discourtesy: On May 30, 2020, at an unknown location in Brooklyn, Police Officer Dylan McCann spoke discourteously to an individual.

Allegation (B) Offensive Language: On May 30, 2020, at an unknown location in Brooklyn, Police Officer Dylan McCann made remarks to an individual based upon the gender of an individual.

Allegation (C) Abuse of Authority: On May 30, 2020, at an unknown location in Brooklyn, Police Officer Dylan McCann refused to provide his shield number to § 87(2)(b)

In his statement provided July 27, 2020, § 87(2)(b) alleged that at approximately 9:28 p.m. on May 30, 2020, he was covering the protests in Flatbush, Brooklyn in his capacity as a reporter for § 87(2)(b) when he observed PO McCann telling an unidentified civilian, "Come here you motherfucker. Come here you little bitch" (Board Review 01). § 87(2)(b) further alleged that when he requested PO McCann's shield number, PO McCann responded by repeating, "Get back" instead of providing the requested information and covered his badge to obscure § 87(2)(b) view of his shield. § 87(2)(b) was able to recall that PO McCann's name started with a "McC," and that his shield number, which he read off of PO McCann's helmet, ended in "4257."

PO McCann, whose shield number is listed as "14257", was interviewed on November 9, 2020, voiced having no recollection of this incident (Board Review 04).

§ 87(2)(g)

It is therefore recommended that **Allegations A-C** be closed as **unsubstantiated**.

Allegation (D) Abuse of Authority: On May 30, 2020, at 2803 Church Avenue in Brooklyn, Police Officer Daniel Chin stopped § 87(2)(b)

Allegation (E) Abuse of Authority: On May 30, 2020, at 2803 Church Avenue in Brooklyn, Police Officer Daniel Chin detained § 87(2)(b)

In his statement, § 87(2)(b) stated that at approximately 10:06 p.m. on May 30, 2020, he was covering the protests in Flatbush when he observed a group of officers charging toward him (Board Review 01). § 87(2)(b) who was wearing a press pass around his neck, began walking backwards in the middle of the street while filming on his phone. One of the officers, PO Chin, began running directly towards § 87(2)(b) despite § 87(2)(b) believing there was ample room to go around. PO Chin said, “Get out of my way,” and less than a second later knocked into § 87(2)(b) with his shoulder. § 87(2)(b) who was incensed by the events he had witnessed covering the protests over the course of the day, told PO Chin, “Fuck you.” PO Chin, who had passed § 87(2)(b) then turned around and sprinted towards § 87(2)(b) with his baton held in both hands, shoving the baton into § 87(2)(b) and pushing him towards the sidewalk. PO Chin pushed § 87(2)(b) again and § 87(2)(b) fell to the ground, where PO Chin handcuffed him in conjunction with other officers.

The 72nd Precinct holding pen roster indicates that § 87(2)(b) was ultimately released at 1:08 a.m. the following morning (Board Review 31).

§ 87(2)(b) another reporter who witnessed the incident, provided a brief statement to IAB which was generally consistent with that of § 87(2)(b) (Board Review 09).

PO Chin provided a statement to the CCRB on August 7, 2020 (Board Review 02). PO Chin stated that at approximately 10:06 p.m. on the date of incident, he and a group of other officers were issued in-person instructions by Chief of Department Terrance Monahan to just “grab a body,” which PO Chin interpreted as meaning that he wanted an arrest to be made (the CCRB plans on asking Chief Monahan about this alleged instruction during his subsequent interview regarding multiple protest related cases). PO Chin was not issued further instructions about who to arrest. PO Chin observed an unidentified lieutenant running after a civilian, at which time PO Chin followed the lieutenant out of a concern for his safety.

Seconds later, PO Chin encountered § 87(2)(b) who appeared to be standing still, taking a picture using his cell phone. PO Chin told § 87(2)(b) to move and § 87(2)(b) complied while telling PO Chin to “go fuck [him]self.” PO Chin did not make physical contact with § 87(2)(b) in any capacity as he moved past him. PO Chin tripped around a second later. PO Chin did not know why he tripped but did not believe it was because of § 87(2)(b). PO Chin then turned around and saw what he believed to be an officer trying to grab § 87(2)(b) for reasons unknown to PO Chin. Solely because of this, PO Chin grabbed § 87(2)(b) at which time he and § 87(2)(b) fell to the ground. PO Chin did not know why they fell to the ground and denied intentionally bringing § 87(2)(b) to the ground. While there were other officers in the immediate vicinity, PO Chin did not know if any other officers were making physical contact with § 87(2)(b). PO Chin attempted to handcuff § 87(2)(b) solely because he believed that another officer was trying to arrest § 87(2)(b). PO Chin did not suspect § 87(2)(b) of any crimes at this point. PO Chin did not see § 87(2)(b) press pass until later, when he stood § 87(2)(b) up.

PO Chin's memo book entry, as read into the record during his CCRB interview, states that PO Chin stopped § 87(2)(b) after § 87(2)(b) "failed to move" and caused PO Chin to "fall to the ground" (Board Review 02) PO Chin's memo book, which was both provided by IAB prior to his interview and by PO Chin himself after the interview, states that PO Chin stopped § 87(2)(b) after he failed to move, causing PO Chin to "go around" (Board Reviews 24 and 12). As discussed in the analysis of Allegation J, PO Chin was unable to account for this discrepancy during his CCRB interview.

This incident is captured on BWC footage filmed by PO Chin (Board Review 10, from 07:28 minutes 07:57 minutes), as well as the BWC of another officer, PO Berndt (Board Review 11, from 00:31 until 00:43 minutes). A PDF consisting of the extracted frames from PO Berndt's footage, which may be reviewed in detail by using the forward and backward arrow keys on one's keyboard, can be reviewed at Board Review 15. The footage is ambiguous as to whether or not PO Chin trips. Upon being presented with his own footage, PO Chin stated that had no independent recollection of tripping, and that it did not occur to him that he tripped until later reviewing the BWC. Elsewhere in his interview, PO Chin claimed that he thought § 87(2)(b) tripped him until he reviewed his BWC. PO Chin denied that he turned around as a result of hearing § 87(2)(b) direct profanity towards him.

Prior to being presented with PO Berndt's BWC, PO Chin was informed that said footage does not appear to depict anyone trying to grab § 87(2)(b) PO Chin then stated that he reviewed the footage prior to the interview and acknowledged that the footage does not depict anyone attempting to grab § 87(2)(b) prior to himself. PO Chin maintained after being shown the footage that he grabbed § 87(2)(b) solely because he perceived at the time that another officer was trying to grab § 87(2)(b)

It is undisputed that PO Chin ran past § 87(2)(b) heard § 87(2)(b) either say "fuck you," or "go fuck yourself," and then turned around and grabbed § 87(2)(b) No officer is depicted on BWC attempting to grab § 87(2)(b) before PO Chin. Furthermore, while both iterations of PO Chin's memo book entry provide different reasons for why the stop was conducted, both are consistent in identifying PO Chin as the one who initiated the stop. Given these factors, the CCRB credits that the most plausible version of events is that PO Chin turned around, brought § 87(2)(b) to the ground and handcuffed him in response to § 87(2)(b) saying, "Fuck you," not as a result of observing another police officer attempting to place § 87(2)(b) under arrest.

Per Patrol Guide Procedure 212-11, officers may only stop individuals suspected of committing a crime (Board Review 14).

PO Chin testified that he did not suspect § 87(2)(b) of committing a crime and moved to apprehend him solely because he believed that another officer was attempting to arrest § 87(2)(b)

§ 87(2)(g)
it is recommended that **Allegations D and E** be closed as **substantiated**.

Allegation (F) Force: On May 30, 2020, at 2803 Church Avenue in Brooklyn, Police Officer Daniel Chin struck § 87(2)(b) with his baton.

As described above, § 87(2)(b) alleged that PO Chin sprinted towards him and pushed him twice with his baton, causing § 87(2)(b) to fall on the ground (Board Review 01). PO Chin, in his CCRB testimony, stated that he grabbed § 87(2)(b) by the arm and that he and § 87(2)(b) then both fell to the ground (Board Review 02). PO Chin claimed during his CCRB interview that he did

not know why he and § 87(2)(b) fell to the ground and denied that he deliberately brought § 87(2)(b) to the ground.

This portion of the interaction may be reviewed at 07:27 minutes in PO Chin's BWC (Board Review 10), 00:31 minutes in PO Berndt's BWC (Board Review 11) and beginning at frame 66 in the PDF attached to Board Review 15.

The BWC footage – particularly, PO Berndt's BWC beginning at 00:35 minutes – shows PO Chin lunging towards § 87(2)(b). Taking this in conjunction with the fact that PO Chin was admittedly trying to arrest § 87(2)(b) at the time, § 87(2)(g)

Patrol Guide Procedure 221-01 states that reasonable force may be used to place a person in custody (Board Review 25). Members of service are instructed to use de-escalation techniques to gain voluntary compliance from subjects when appropriate. In determining whether force is reasonable, the Patrol Guide outlines numerous factors to be taken under consideration, including the nature and severity of the crime committed, whether the person is actively resisting being apprehended, whether the person is attempting to evade arrest by flight, and the number of subjects in comparison to the number of MOS.

§ 87(2)(b) was not suspected of any crimes at the time of his arrest. PO Chin § 87(2)(g) make any efforts to place § 87(2)(b) in custody prior to lunging at him and bringing him to the ground. § 87(2)(g)

It is therefore recommended that Allegation F be closed as **substantiated**.

Allegation (G) Discourtesy: On May 30, 2020, at 2803 Church Avenue in Brooklyn, Police Officer Daniel Chin spoke discourteously to § 87(2)(b)

Allegation (H) Discourtesy: On May 30, 2020, at 2803 Church Avenue in Brooklyn,

Lieutenant Michael Butler spoke discourteously to § 87(2)(b)

Allegation (I) Discourtesy: On May 30, 2020, at 2803 Church Avenue in Brooklyn, officers spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that after he was arrested, an officer got within a few inches of § 87(2)(b) face and said either, "Shut the fuck up," or "Fuck you" (Board Review 01). § 87(2)(b) heard other officers cursing at him during this point, as well as earlier when he was on the ground, but could not describe these officers.

PO Chin can be heard telling § 87(2)(b) to get on his "fucking stomach" and to "shut up" at 1:07 minutes and 1:27 minutes in PO Berndt's BWC footage (Board Review 11), respectively. For the purpose of identifying the author of these statements, one may review the same footage at 1:40 minutes, which depicts PO Chin stating, "Then you should have gotten out of my way." Lieutenant Butler – who is visible on the left side of the screen – can be heard telling § 87(2)(b) "You're not getting anything you fucking asshole" beginning at 1:47 minutes in PO Berndt's BWC. At 01:45 minutes in the same footage, an unidentified officer can be heard saying, "Shut the fuck up," while at 1:50 minutes an officer calls § 87(2)(b) a "piece of shit."

PO Chin denied hearing any officer using profanity with § 87(2)(b) and claimed to not be able to identify the voices of any of the officers using profanity in the above-referenced footage (Board

Review 02). PO Chin testified that § 87(2)(b) was compliant while he was being arrested.

Lieutenant Butler identified himself as being depicted on-screen wearing a blue Chief of Department shirt at 1:49 minutes in PO Berndt's BWC; however, despite being played this portion of footage twice, Lieutenant Butler denied hearing himself call § 87(2)(b) a "fucking asshole" and did not recall using profanity during the interaction (Board Review 03).

Patrol Guide Procedure 200-02 requires that officers treat civilians with courtesy and respect (Board Review 20).

In Disciplinary Case 2017-17005, the Deputy Commissioner of Trials noted that while "profane remarks, made during stressful situations or while an officer is trying to get a chaotic situation under control, are not misconduct," this exception should be narrowly construed so as to not swallow the rule (Board Review 26). In this case, the administrative court held that an officer who told a bystander to "shut the fuck up" while making an arrest was guilty of misconduct. The court also noted that "it would be extremely incongruous for the Court to hold Respondent accountable for excessive force against Perez, but excuse his foul language toward a bystander while engaging in that excessive force."

§ 87(2)(g)

With regard to PO Chin telling § 87(2)(b) to "shut up" after he was handcuffed, as well as Lieutenant Butler calling § 87(2)(b) a "fucking asshole," § 87(2)(g)

It is therefore recommended that **Allegations G and H** be closed as **substantiated**.

Both PO Chin and Lieutenant Butler denied recognizing the voices of the other officers depicted on BWC using profanity. § 87(2)(g)

It is therefore recommended that **Allegation I** be closed as **officers unidentified**.

Allegation (J) Untruthful Statement: On August 10, 2020, at 100 Church Street in Manhattan, Police Officer Daniel Chin provided a false official statement to the CCRB.

Patrol Guide Procedure 203-09 defines a false official statement as "an intentional statement that a member of service knows to be untrue, which is material to the outcome of an investigation, proceeding, or other matter in connection with which the statement is made" (Board Review 27).

§ 87(2)(g)

As noted previously, PO Chin read his memo book entry onto the record as follows: "At TPO A/O stopped defendant after he failed to move, causing A/O to fall to the ground" (Board Review 02) PO Chin stated that he edited his memo book once, on June 2, 2020 at 6:57 p.m. The copy of PO Chin's memo book which was in the possession of the CCRB at the time of PO Chin's interview

reflects that it was edited at the time mentioned by PO Chin; however, in neither version did § 87(2)(b) cause PO Chin to “fall to the ground” (Board Review 24). At the conclusion of his interview, PO Chin was confronted regarding the discrepancy. PO Chin stated that he did not know why the memo book entry in the CCRB’s possession differed from the one he read onto the record, and did not recall changing the entry to indicate that § 87(2)(b) had caused him to trip rather than “go around.”

At the conclusion of his CCRB interview, the undersigned requested that on-site CCRB personnel have PO Chin send another copy of his memo book to the undersigned. This copy may be viewed Board Review 12, and the email documenting the chain of custody of the memo book entry can be reviewed at Board Review 13. The entry is identical to that previously provided to the CCRB by IAB and does not contain language about § 87(2)(b) causing PO Chin to fall to the ground.

§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)
When questioned about his memo book entry, PO Chin stated that he thought § 87(2)(b) tripped him before he reviewed his body-worn camera footage. Elsewhere in the interview, however, PO Chin claimed that he thought § 87(2)(b) tripped him until reviewing his BWC and had no independent recollection of tripping, thus suggesting that he edited his memo book from “fall to the ground” to “go around.” Given that PO Chin testified that he only edited his memo book once, on June 2, 2020, these two explanations are mutually exclusive. § 87(2)(g)
PO Chin misrepresented what was contained in his activity log by introducing a narrative about § 87(2)(b) causing him to trip. Secondly, the inserted narrative is itself false. § 87(2)(g)

§ 87(2)(g)

PO Chin’s memo book (regardless of which iteration one refers to), contains the following language: “A/O stopped defendant after he failed to move, causing A/O to...” This narrative places PO Chin as the officer who initiated the stop, and in all its various iterations is followed by a reason for why PO Chin conducted it. By contrast, PO Chin’s CCRB testimony portrays him as responding to another officer’s attempt to stop § 87(2)(b)

These two versions of events are not consistent. § 87(2)(g)

§ 87(2)(g)

PO Chin lunged towards § 87(2)(b) as depicted on BWC § 87(2)(g)

it is recommended that Allegation J be closed as substantiated.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 30).
- PO McCann has been a member of service for four years. This is his first CCRB complaint.
- PO Chin has been a member of service for 10 years. In that time, he has been the subject of 11 other allegations in five cases, none of which were substantiated. PO Chin is currently

under investigation in a complaint stemming from May 29, 2020, the day prior to this incident, CCRB 202003737.

- Lieutenant Butler has been a member of service for 10 years. In that time, he has been the subject of 38 allegations in 11 other cases.
 - Lieutenant Butler has been the subject of unsubstantiated discourtesy allegations in CCRB 201408615 and CCRB 201400357. In the latter case, Lieutenant Butler was also the subject of a substantiated stop allegation. The CCRB recommended that Lieutenant Butler receive formalized training, while the NYPD issued him a penalty of “instructions.”
 - Lieutenant Butler is currently the subject of additional allegations pertaining to incidents on May 30, 2020 and June 4, 2020, which are under investigation pursuant to CCRB case numbers 202003788 and 202004204, respectively.

Mediation, Civil and Criminal Histories

- This case was not eligible for mediation.
- A check to determine whether § 87(2)(b) filed a Notice of Claim regarding this incident was filed on December 7, 2020 and is currently pending.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 8

Investigator: Charlie Hartford Inv. Charlie Hartford 12/30/20
Signature Print Title & Name Date

Squad Leader: Ethan De Angelo IM Ethan De Angelo X
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date